

Union Duties of Excise (Distribution) Act, 1979

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Union of India - Act

Union Duties of Excise (Distribution) Act, 1979

UNION OF INDIA

India

Union Duties of Excise (Distribution) Act, 1979

Act 24 of 1979

Published on 20 May 1979

Commenced on 20 May 1979

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Union Duties of Excise (Distribution) Act, 1979

(Act

No. 24 of 1979

)

Last Updated 20th July, 2019

Statement of Objects and Reasons. - At present, a sum equivalent to twenty per cent, of the annual net proceeds of Union duties of excise, excluding cesses levied under special Acts and earmarked for special purposes, is paid to the States and distributed among them in the percentages which the Sixth Financial Commission had recommended. The seventh Finance Commission has recommended that -

(i) forty per cent, of the net proceeds of Union duties of excise, other than on generation of electricity, levied and collected during each of the years 1979-80 to 1983-84, excluding cesses levied under special Acts and earmarked for

special purposes, should be paid out of the Consolidated Fund of India to the States and distributed among them in the percentages recommended by the Commission; and

(ii) during each of the years 1979-80 to 1983-84, the entire net proceeds of the Union duties of excise on generation of electricity should be paid out of the Consolidated Fund of India to each State in an amount equal to the collection in or attributable to that State.

This Bill is intended to give effect to item (i) of the above recommendation of the commission. Item (ii) is being dealt with in another Bill.

[Dated 20.5.1979.]

An Act to provide for the payment out of the Consolidated Fund of India of sums equivalent to a part of the net proceeds of certain Union duties of excise to the States to which the law imposing the duty extends and for the distribution of those sums among those States in accordance with the principles recommended by the Finance Commission in its [report dated the 25th day of November, 1994]

[Substituted by Act 31 of 1995, s. 2, for 'second report dated the 18th day of December, 1989' (w.e.f. 1-4-1995).]

Be it enacted by Parliament in the Thirtieth Year of the Republic of India as follows: -

1.

Short title and commencement.

(1)

This Act may be called the Union Duties of Excise (Distribution) Act, 1979.

(2)

It shall be deemed to have come into force on the 1st day of April, 1979.

2.

[Definition.

[Substituted by Act 17 of 1989, s. 3, for sections 2 and 3 (w.e.f. 1-4-1989).]

- In this Act, the expression "distributable Union duties of excise" means [forty-seven and a half per cent.] of the net proceeds of Union duties of excise, levied and collected under the Central Excises and Salt Act, 1944 (1 of 1944) and any other law for the levy and collection of such duty, unless the law earmarks the proceeds of the duty for any special purpose.

Explanation. - The expression "net proceeds" has the same meaning as in clause (1) of article 279 of the Constitution.]

3.

[Payment to States of sums equivalent to a part of the net proceeds of Union duties of excise and distribution of sums among them.

[Substituted by s. 4, Act 31 of 1995, for section 3 (w.e.f. 1-4-1995).]

- During the financial year commencing on the 1st day of April, 1995, and each of the four succeeding financial years, there shall be paid, out of the Consolidated Fund of India, to the States, sums equivalent to the distributable Union duties of excise levied and collected in that year and, -

(a)

sixteen-nineteenth of the sums so payable during each such financial year shall be distributed to each of the States specified in column (1) of Table I below in such percentage as is set out against it in column (2) thereof; and

(b)

three-nineteenth of the sums so payable during each such financial year shall be distributed to each of the States specified in column (1) of Table II below in such percentage as is set out against it in column (2) thereof with respect to that financial year: -

Table I

State

Percentage

(1)

(2)

Andhra Pradesh

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0.180

Gujarat

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4.046

Haryana

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1.238

Himachal Pradesh

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0.704

Jammu and Kashmir

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1.097

Karnataka

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5.339
Kerala

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3.875
Madhya Pradesh

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8.290
Maharashtra

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6.126
Manipur

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0.282
Meghalaya
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0.283
Mizoram

0.149
Nagaland

0.181
Orissa

4.495
Punjab

1.461

Rajasthan

5.551

Sikkim

0.126

Tamil Nadu

6.637

Tripura

0.378

Uttar Pradesh

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17.811

West Bengal

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7.471

Table II

State

Financial year and percentage

(1)

(2)

1995-96

1996-97

1997-98

1998-99

1999-2000

Andhra Pradesh

12.069

7.988

0.000

0.000

0.000

Arunachal Pradesh

3.410

4.300

5.871

6.224

6.667

Assam

8.543

9.836

11.849

10.748

9.290

Bihar

6.434

2.965

0.000

0.000

0.000

Goa
0.973
1.058
1.161
0.917
0.604
Himachal Pradesh
8.816
10.744
14.057
14.230
14.338
Jammu and Kashmir
13.366
16.491
21.985
22.741
23.700
Manipur
3.930
4.891
6.602
6.917
7.348
Meghalaya
3.590
4.403
5.815
5.994
6.130
Mizoram
3.676
4.628
6.278
6.784
7.074
Nagaland
5.818
7.417
10.247
11.072
12.025
Orissa
4.815
5.248
4.934
2.773
0.680
Rajasthan
0.835
0.000

0.000

0.000

0.000

Sikkim

1.199

1.473

1.938

1.982

2.055

Tripura

5.465

6.807

9.263

9.618

10.089

Uttar Pradesh

17.061

11.751

0.000

0.000

0.000.]

4.

Payment to be charged on the Consolidated Fund of India.

- The expenditure on the payments in pursuance of section 3 shall be charged on the Consolidated Fund of India.

5.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules providing for the time at which and the manner in which, any payments under this Act are to be made, for the making of adjustments between one financial year and another and for any other incidental or ancillary matters.

(2)

Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification of annulment shall be without prejudice to the validity of anything previously done under that rule.

6.

Repeal.

- The Union Duties of Excise (Distribution) Act, 1962 (3 of 1962), shall, as from the 1st day of April, 1979 stand repealed.

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